

24VECV03167 24VECV03167

County: los-angeles

Division: Civil Law and Motion

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Hearing date: 2026-06-30

Motion: DEFENDANTS CITY OF LOS ANGELES AND JOSE MONZON'S DEMURRER TO PLAINTIFFS' THIRD AMENDED COMPLAINT

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Case Number: 24VECV03167 Hearing Date: June 30, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST
DISTRICT

ALI SALEHPOUR, individually and as personal representative
of THE ESTATE OF AMELIA SALEHPOUR, deceased,

Plaintiff,

vs.

RISING ROADS RECOVERY SERVICES FOR WOMEN, LLC, a
California limited liability company; et al.,

Defendants.

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CASE NO: 24VECV03167

[TENTATIVE] ORDER RE: DEFENDANTS CITY OF
LOS ANGELES AND JOSE MONZON'S DEMURRER TO PLAINTIFFS' THIRD AMENDED COMPLAINT

Dept. U

8:30 a.m.

June 30, 2026

I.

BACKGROUND

This case is a wrongful death action filed
by Plaintiffs Ali Salehpour ("Ali") and Suzanne Salehpour ("Suzanne"),
individually and as personal representatives of the Estate of Amelia Salehpour
("Amelia"), deceased, against Defendants Rising Roads Recovery Services for
Women, LLC ("Rising Roads"); Recovery Solutions, LLC d/b/a Saddleback Recovery
("Saddleback"); Bold Health Medical Group, a Professional Corporation ("Bold
Health"); Katy Alexander ("Alexander"); Brandon Owens ("Owens"); Amelia
Pietraccini ("Pietraccini"); Andrew Schneider ("Schneider"); Nicole Cavanagh
("Cavanagh"); Llysa Lott ("Lott"); Kimiko Miller ("Miller"); City of Costa Mesa
("Costa Mesa"); City of Los Angeles ("City LA"); Jose Monzon ("Monzon"); County

of Los Angeles (the "County"); Kyle Butler ("Butler"); Michel R. Moore ("Moore"); Dominic Choi ("Choi"); Alfred Labrada ("Labrada"); and Odey C. Ukpo ("Ukpo").

On July 2, 2024, Ali filed his original complaint.

On October 21, 2024, Ali and Suzanne (hereafter, "Plaintiffs") filed their first amended complaint.

On April 1, 2025, Plaintiffs filed their second amended complaint (the "SAC") against Defendants Rising Roads, Saddleback, Bold Health, Alexander, Owens, Pietraccini, Schneider, Cavanagh, Lott, Miller, Costa Mesa, City LA, Monzon, the County, and Butler, alleging: (1) professional negligence; (2) negligence per se; (3) negligence; (4) violation of mandatory duty under Government Code section 815.6; (5) negligence; (6) negligent hiring, training, and supervision; (7) continuation of Amelia's causes of action (survival action); (8) wrongful death; (9) intentional misrepresentation/concealment; and (10) intentional misrepresentation/concealment.

On May 15, 2025, Judge Wendy L. Wilcox sustained, without leave to amend, Costa Mesa's demurrer to the SAC.

On May 28, 2025, Judge Wilcox sustained, without leave to amend, the County and Butler's demurrer to the SAC.

On July 15, 2025, Judge Wilcox overruled a demurrer to the ninth cause of action in the SAC.

On July 16, 2025, Judge Wilcox overruled Lott's demurrer to the SAC.

On July 17, 2025, Judge Wilcox overruled Cavanagh's demurrer to the SAC.

On July 25, 2025, Judge Wilcox entered judgment in favor of the County and Butler.

On November 6, 2025, Judge Valerie Salkin granted, without leave to amend, City LA and Monzon's motion for judgment on

the pleadings as to claims by Plaintiff Suzanne. Judge Salkin also granted, with leave to amend, City LA and Monzon's motion for judgment on the pleadings as to claims by Plaintiff Ali.

On January 26, 2026, Plaintiffs filed their third amended complaint (the "TAC") against Defendants Rising Roads, Saddleback, Bold Health, Alexander, Owens, Pietraccini, Schneider, Cavanagh, Lott, Miller, City LA, Monzon, and Steven Hernandez ("Hernandez"), alleging: (1) professional negligence against Rising Roads, Saddleback, Bold Health, Alexander, Owens, Pietraccini, Cavanagh, Schneider, Lott, and Miller; (2) negligence per se against Rising Roads, Saddleback, Bold Health, Alexander, Owens, Pietraccini, Schneider, Cavanagh, Lott, and Miller; (3) negligence against Rising Roads, Saddleback, Bold Health, Alexander, Owens, Pietraccini, Schneider, Cavanagh, Lott, and Miller; (4) violation of mandatory duty under Government Code section 815.6 against City LA and Monzon; (5) negligence against City LA and Monzon; (6) negligent hiring, training, and supervision against Rising Roads, Saddleback, and Bold Health; (7) continuation of Amelia's causes of action (survival action) against Rising Roads, Saddleback, Bold Health, City LA, Alexander, Owens, Pietraccini, Schneider, Cavanagh, Lott, Miller, and Monzon; (8) wrongful death against Rising Roads, Saddleback, Bold Health, Alexander, Owens, Pietraccini, Schneider, Cavanagh, Lott, Miller, Hernandez, City LA, and Monzon; (9) intentional misrepresentation/concealment against Saddleback, Rising Roads, Lott, and Cavanagh; and (10) intentional misrepresentation/concealment against City LA and Monzon.

On March 17, 2026, City LA and Monzon filed their demurrer to the TAC. Also on March 17, 2026, City LA and Monzon filed their motion to strike portions of the TAC related to seeking punitive damages.

On June 12, 2026, Plaintiffs filed their opposition briefs.

On June 22, 2026, City LA and Monzon filed their reply briefs.

II.

LEGAL STANDARD

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demurrer is a procedure to object to a pleading set forth under Code of Civil Procedure section 430.10, et seq. Because a demurrer tests the pleadings alone and not the evidence or other extrinsic matters, a demurrer analysis considers only those defects which appear on the face of the pleading or are judicially noticed. SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905. When considering demurrers, courts assume the truth of the facts alleged in the pleading and read the allegations liberally and in context. Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1081.

A

demurrer for sufficiency attacks a pleading on the ground that it does not contain facts sufficient to state a cause of action. Code Civ. Proc., § 430.10 (e); Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747. Parties may also demur to causes of action individually. In either case, the procedure is also called a 'demurrer for sufficiency,' and it tests the pleading by itself, alone and disconnected from extraneous matters. Hahn, at p. 747.

III.

REQUEST FOR JUDICIAL NOTICE

City LA and Monzon

request that the Court take judicial notice of Ali's tort claim for damages submitted on July 2, 2024. City LA and Monzon also request that the Court take judicial notice of certain LAPD "Body Worn Videos."

As to Ali's claim

for damages, Plaintiffs oppose the request on grounds that the exhibit is incomplete. Specifically, Plaintiffs complain that box 2, 3, and 4 of the claim state, "SEE ATTACHMENT," but no attachment is provided. City LA and Monzon assert that while the document may refer to an attachment, no attachment is included as part of the document received through discovery. Thus, according to City LA and Monzon, the tort claim attached to their request for judicial notice is not incomplete. (See Reply re: RJN, p. 1:6-11.)

Because there is

no dispute that the document submitted to the Court as RJN, Exhibit 1 represents at least part of Ali's government tort claim, the Court will take

judicial notice of said document as submitted.

However, given that there appears to be some dispute as to whether that document represents the whole of Ali's government claim, the Court will not take judicial notice of the presence or absence of additional attachments.

As to the "Body

Worn Videos" lodged with the Court, the Court disagrees with City LA and Monzon that such evidence is the proper subject of judicial notice. The videos are not, as City LA and Monzon assert, "business records of a public entity."

(Reply re: RJN, p. 1:16.) Rather,

the videos were purportedly downloaded by an LAPD detective who provided them to litigation counsel during discovery.

The videos' authenticity and what the videos depict are matters that are reasonably subject to dispute, thus judicial notice would be improper. See Evid. Code, § 452. As to "Body Worn Videos," the request for judicial notice is denied.

IV.

DISCUSSION

City LA and Monzon demur to each cause of action alleged against them in the TAC: (4) violation of mandatory duty under Government Code section 815.6; (5) negligence; (7) continuation of Amelia's causes of action (survival action); (8) wrongful death; and (10) intentional misrepresentation/concealment. City LA and Monzon also move to strike portions of the TAC related to seeking punitive damages.

a.

Review of Allegations in the TAC

Plaintiffs plead

that between July 22, 2023, and July 26, 2023, Amelia was trafficked from a licensed treatment facility in Orange County to a residence in Los Angeles that functioned as a hub for narcotics trafficking, prostitution, human trafficking, and other criminal activity. Plaintiffs allege Amelia was held against her will at the residence and was murdered there on July 26, 2023. Plaintiffs are Amelia's surviving parents. (TAC, ¶¶ 1, 6, 36-38.)

Plaintiffs plead

that:

· In

May 2023, Amelia was admitted to Rising Roads, an all-female in-patient substance abuse treatment facility in Costa Mesa.

· Amelia's

mental health deteriorated substantially while there and that she required a higher level of care.

· Rising

Roads discharged Amelia to Saddleback, a subcontractor facility.

· Five

days after entering Saddleback, Amelia was permitted to leave against medical advice despite her mental impairments and despite being a danger to herself.

· Saddleback

released Amelia without money, a cellular telephone, identification, transportation, food, or water and failed to timely notify Plaintiffs of her departure.

· Amelia's

family attempted to engage the Costa Mesa Police Department to locate Amelia. Costa Mesa's failures resulted in Amelia being transported and trafficked by gang members and ultimately taken to Los Angeles.

· Plaintiffs

were able to pinpoint Amelia's location at the Los Angeles residence and repeatedly advised law enforcement that Amelia was being held there against her will.

· LAPD

knew or should have known that the residence was associated with narcotics trafficking, prostitution, and the recent false imprisonment of another young woman. Plaintiffs allege LAPD failed to follow its own protocols applicable to at-risk and critical missing persons.

(TAC, ¶¶ 26-38, 88.)

Plaintiffs plead

that on July 24, 2023, a report was made to LAPD concerning Amelia's disappearance. Plaintiffs allege LAPD had a mandatory duty to treat Amelia as an at-risk or critical missing person under its policies because she was mentally impaired, required medical attention, and was the victim of a crime. Plaintiffs allege LAPD failed to comply with mandatory policies governing at-risk missing persons, including dispatch and notification requirements. (TAC, ¶¶ 91-95.)

Plaintiffs plead

that on July 24, 2023, LAPD officers David Garcia and Gabriel Garcia responded to the residence at approximately 10:00 P.M. Plaintiffs allege the officers were uncertain how to proceed, failed to recognize the exigent circumstances confronting them, and informed Plaintiffs that all they could do was knock on the exterior gate of the property. Plaintiffs allege the officers did not enter the property or otherwise investigate further. (TAC, ¶¶ 96-99.)

Plaintiffs plead

that on July 25, 2023, after a second 911 call regarding Amelia, LAPD specifically promised Plaintiffs that officers would return to the residence and conduct a complete search for Amelia. Plaintiffs allege that, in reliance on these representations, they refrained from entering the property themselves or directing others to do so. (TAC, ¶¶ 100-103.)

Plaintiffs plead

that LAPD subsequently returned to the residence, detained an individual wanted on drug charges, and obtained consent to enter the property. Plaintiffs allege that contrary to LAPD's representations, officers never conducted a meaningful search of the property. Instead, body-worn camera footage purportedly shows that officers merely walked exterior pathways, knocked on doors, failed to enter any rooms, failed to open any doors, failed to inspect any structures on the property, and failed to search the garage where Amelia was located. Plaintiffs allege LAPD thereafter falsely represented to Plaintiffs that officers had searched the property and that Amelia was not there. (TAC, ¶¶ 104-108, 126-131.)

Plaintiffs allege

that Amelia was alive and inside the garage at the time of LAPD's purported search and that opening the garage door would have led to her rescue. Plaintiffs allege that only a minimal effort would have been required to locate and save Amelia. (TAC, ¶¶ 131-133.)

Plaintiffs plead

that less than 24 hours after LAPD's purported search, a 911 call was placed from the residence to report a "dead girl." Amelia was subsequently found deceased in the garage. Plaintiffs allege the officers' presence and near discovery of Amelia panicked the occupants of the residence and caused them to conclude that Amelia had become a liability, resulting in the decision to murder her. (TAC, ¶¶ 107, 134-136.)

Plaintiffs plead Amelia

was murdered by Hernandez, who strangled and sexually assaulted Amelia. Plaintiffs allege Hernandez attempted to conceal the circumstances of Amelia's death. Plaintiffs allege Amelia had been trafficked to the residence by individuals including Marlon Mancillas and Gerson Perez as part of an ongoing criminal enterprise involving narcotics and prostitution. (TAC, ¶¶ 36-38, 136-140.)

Plaintiffs plead

that on July 26, 2023, LAPD represented to Plaintiffs that there was no indication of foul play and that Amelia's death appeared accidental. Plaintiffs allege these representations were false and were made despite highly suspicious circumstances surrounding Amelia's death. Plaintiffs allege any investigation was negligently supervised by Sergeant Monzon and that Monzon and other officers were motivated to minimize or mischaracterize the circumstances of Amelia's death because their prior failures had contributed to it. (TAC, ¶¶ 109-113.)

Plaintiffs plead

that despite the suspicious circumstances surrounding Amelia's death, LAPD failed to conduct an adequate homicide investigation and communicated its conclusions to the Los Angeles County Medical Examiner-Coroner ("LACMEC"). Plaintiffs allege LACMEC failed to conduct an adequate independent investigation and initially accepted LAPD's conclusion that Amelia had died of an overdose. (TAC, ¶¶ 7, 114-115.)

Plaintiffs further

allege that a subsequent autopsy determined Amelia's death was a homicide caused by strangulation and documented evidence of sexual assault and

blunt-force injuries. Plaintiffs allege

that the initial failures of law enforcement and LACMEC resulted in the loss of valuable and perishable evidence. (TAC, ¶¶ 8, 141-144.)

Plaintiffs plead

that LAPD is a government entity and an agency of the City of Los Angeles and that Monzon was employed by LAPD as a police officer and supervisor. Plaintiffs allege they timely submitted a claim for damages under the Government Claims Act, which the City rejected. (TAC, ¶¶ 13-14.)

Plaintiffs plead

that the Van Nuys Narcotics Enforcement Detail independently investigated the residence where Amelia died and uncovered evidence consistent with Plaintiffs' allegations concerning her trafficking and murder. Plaintiffs allege LAPD withheld critical evidence and documents from the investigators, delaying their ability to connect Amelia's death to an existing criminal investigation that ultimately resulted in criminal charges against multiple defendants. (TAC, ¶¶ 114, 116.)

Plaintiffs plead

that LAPD concealed body-worn camera footage and other evidence concerning the July 25, 2023 search for more than two (2) years, including from other investigators and prosecutors. Plaintiffs allege the concealed footage demonstrates that officers never conducted the search they represented had occurred. (TAC, ¶¶ 126-131.)

Plaintiffs further

allege that Detectives Verdin and Tan recognized that Amelia's death was a homicide but were instructed by superior officers to cease investigating the matter because LAPD did not want to assist the family in pursuing claims against the City. Plaintiffs allege the detectives were retaliated against after attempting to investigate the matter further. (TAC, ¶¶ 145-150.)

Plaintiffs also

allege that body-worn camera footage captured statements by Sergeant Monzon and other officers demonstrating indifference to the search effort, including statements such as, "Well, we tried. A for effort," and "Voila. No more contact." Plaintiffs allege these statements are indicative of LAPD's failure to undertake a meaningful search

and subsequent efforts to conceal that failure. (TAC, ¶¶ 128-130.)

b.

Plaintiffs' claims against City LA and Monzon
are barred by public entity immunity.

City LA and Monzon

demur to each of Plaintiffs' claims against them in the TAC on grounds that they
are barred by public entity immunity.

"Sovereign

immunity is the rule in California." Sonoma

Ag Art v. Department of Food & Agriculture (2004) 125 Cal.App.4th 122,
125, quoting Colome v. State Athletic Com. (1996) 47 Cal.App.4th 1444,
1454-1455. "[T]he intent of the

[Government Claims Act] is not to expand the rights of plaintiffs in suits
against governmental entities, but to confine potential governmental liability
to rigidly delineated circumstances: immunity is waived only if the various
requirements of the Act are satisfied." Williams

v. Horvath (1976) 16 Cal.3d 834, 838. The Government Claims Act "permits private
tort actions against government entities and employees where permitted by
statute, but otherwise retains the general concept of immunity for government
entities." DeJung v. Superior Court
(2008) 169 Cal.App.4th 533, 543. Thus,
all public entity and public employee tort liability is dependent on the
existence of an authorizing statute. See
Gov. Code, § 815 (a).

"A tort, whether

intentional or negligent, involves a violation of a legal duty, imposed
by statute, contract or otherwise, owed by the defendant to the person injured.
Without such a duty, any injury is 'damnum absque injuria' -- injury without
wrong." Nally v. Grace Community

Church (1988) 47 Cal.3d 278, 292 (*italics original; quotations omitted*). When alleging liability based upon a statute,
this requires at a minimum, that the litigant "specifically allege the
applicable statute or regulation" that was allegedly violated. Lehto v. City of Oxnard (1985) 171
Cal.App.3d 285, 292. "Duty cannot be
alleged simply by stating 'defendant had a duty under the law'; that is a
conclusion of law, not an allegation of fact. The facts showing the existence
of the claimed duty must be alleged." Searcy

v. Hemet Unified School Dist. (1986) 177 Cal.App.3d 792, 802.

“Except as

otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.” Gov. Code, § 820.2. “Except as otherwise provided by statute, a public employee is not liable for an injury caused by the act or omission of another person. Nothing in this section exonerates a public employee from liability for injury proximately caused by his own negligent or wrongful act or omission.” Gov. Code, § 820.8. “Except as otherwise provided by statute (including Section 820.2), a public employee is liable for injury caused by his act or omission to the same extent as a private person.” Gov. Code, § 820 (a).

“Where a public

entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.”

Gov. Code, § 815.6. “Enactment”

as used in Government Code section 815.6 is defined as a “constitutional provision, statute, charter provision, ordinance or regulation.” Gov. Code, § 810.6. “A statute is deemed to impose a mandatory

duty on a public official only if the statute affirmatively imposes the duty and provides implementing guidelines. If a statute does not require that a particular action be taken, [] section 815.6 does not create the right to sue a public entity.” O’Toole v. Superior

Court (2006) 140 Cal.App.4th 488, 510 (internal quotations and citations omitted).

Plaintiffs allege

City LA and Monzon are liable under Government Code section 815.6 because they owed Plaintiffs and Amelia a mandatory duty under Penal Code section 14211 and the LAPD Policy Manual section 4/712.10.

Plaintiffs also cite Government Code sections 27491, 27491.5 and 27520. (TAC, ¶ 368.) Plaintiffs argue that those statutes’ use of the word “shall” conferred upon LAPD and City LA a mandatory duty to take steps to search for and rescue Amelia.

Government Code

sections 27491, 27491.5, and 27520 pertain to the conduct of a coroner's office. Here, the coroner's office at issue is LACMEC, which is part of the County.

The County is no longer a defendant in this case. These sections of the Government Code do not support imposing liability against City LA and Monzon.

As was also the

case in its ruling on City LA and Monzon's earlier motion for judgment on the pleadings, the Court disagrees with Plaintiffs' broad interpretation of Penal Code section 14211 as conferring on LAPD a mandatory duty to take any of the specific actions that Plaintiffs complain LAPD failed to take in this case. The statute requires police to accept reports of missing persons; advise persons making such reports of the name and telephone number of the police or sheriff's department with jurisdiction of the missing person's residence; "make an assessment of reasonable steps to be taken to locate the person by using...report forms, checklists, and guidelines"; "broadcast a 'Be On the Lookout' bulletin"; and "within two hours after the receipt of the report, electronically transmit the report to the Department of Justice." Pen. Code, § 14211 (a)-(e).

Similarly, LAPD

Policy Manual section 4/712.10 states that an "employee ... shall complete a Missing/Found Persons Investigation, Form 03.16.00, without delay and immediately notify and forward a copy of the report to the outside agency having jurisdiction over the person's residence address and, if applicable, the jurisdiction where the missing person was last seen."

Penal Code section

14211 and the LAPD Policy Manual do not impose on LAPD a mandatory duty to conduct a warrantless search and rescue of the residence where an "at risk" person is believed to be held. Nor do those sections impose on LAPD a mandatory duty to open closed doors or look in particular places when searching for an "at risk" person inside a residence. Rather, those sections require that LAPD accept and prioritize missing persons reports, as well as broadcast a "Be On the Lookout" bulletin. Here, Plaintiffs do not complain that Amelia died because LAPD failed to accept a report or broadcast a bulletin. Rather, Plaintiffs complain Amelia died because LAPD failed to sufficiently search the property at Plaintiffs' request. See *Shelton v. City of Westminster* (1982) 138 Cal.App.3d 610, 623 (*Shelton*) (under

Gov. Code, § 815.6, “liability is only for the particular harm caused by the failure to perform the mandatory duty”).

This is insufficient to show a violation of Plaintiffs’ cited statutes.

The TAC includes

additional allegations that LAPD concealed body-worn camera footage and other evidence concerning the July 25, 2023 search for more than two (2) years, including from other investigators and prosecutors. Plaintiffs allege the body-worn camera footage captured statements by Monzon and other officers demonstrating indifference to the search effort, including statements such as, “Well, we tried. A for effort,” and “Voila. No more contact.” Plaintiffs allege these statements are indicative of LAPD’s failure to undertake a meaningful search and subsequent efforts to conceal that failure. (TAC, ¶¶ 126-131.)

City LA disagrees

with Plaintiffs that their interpretation of LAPD’s efforts as insufficient to meet their demands and as demonstrating indifference to Amelia’s wellbeing support imposing liability against a public entity.

City LA’s departments and employees have immunity for their decision as to whether to respond to a particular scene, what type of investigation, if any, to conduct, and the manner in which to conduct any investigation. See Gov. Code, §§ 820.2, 845. Decisions that require “comparisons, choices, judgments, and evaluations, comprises the very essence of the exercise of ‘discretion’ ... are immunized under section 820.2.” *Thompson v. County of Alameda* (1980) 27 Cal.3d 741, 749 (Thompson).

The scope of any LAPD search at the property and subsequent choices and whether and how to continue investigating Amelia’s death are plainly entitled to public entity immunity under Government Code section 820.2.

Plaintiffs

complain that Monzon promised Plaintiffs LAPD would search the property, but “[a]ll they did was walk up and down two exterior outdoor walkway.” (TAC, ¶ 24.) Again, the decision as to whether and how to enter the property and investigate certain rooms is necessarily one over which police officers exercise a substantial amount of discretion.

There is no specific right or obligation (statutory or otherwise) that requires police officers to conduct a specific type of search or to conduct a search with a certain degree of thoroughness.

See *Thompson*, *supra*, 27 Cal.3d at p. 749; see also *Conway v. County of Tuolumne* (2014) 231 Cal.App.4th 1005, 1014 (“California’s

common law has long provided personal immunity from lawsuits challenging a governmental official's discretionary acts within the scope of his or her authority").

LAPD is not liable

for failing to open closed doors at the residence where there is no specific statutory obligation that LAPD conduct a specific type of search. This is especially the case where the dispatched officers appear to have had reasonable grounds for believing that opening a closed door would have violated residents' Fourth Amendment rights. See *People v. Celis* (2004) 33 Cal.4th 667, 676-677 (Fourth Amendment proscribes warrantless searches unless certain conditions are satisfied).

In sum, Plaintiffs

are incorrect that Penal Code section 14211 via Government Code section 815.6 imposed on LAPD a mandatory duty to conduct a full search of the house unbounded by the constitutional limits of the Fourth Amendment as to the home's property owners and residents.

Plaintiffs are similarly incorrect that those sections imposed on LAPD a mandatory duty to rescue and to otherwise prevent harm to Amelia. In short, Penal Code section 14211 does not impose the mandatory duties that Plaintiffs have read into that section. As such, Plaintiffs cannot seek liability against LAPD for violations of Penal Code section 14211 and/or Government Code section 815.6.

Plaintiffs' claims

against City LA and Monzon are barred by public entity immunity.

c.

Plaintiffs' allegations fail to show a legal duty or breach thereof by City LA and/or Monzon.

Plaintiffs argue

LAPD may be liable for their failures to locate Amelia before her death under a "special relationship" theory of liability.

Generally, a

person who has not created a peril has no duty to come to the aid of another unless a "special relationship" exists.

"[W]hen the state, through its agents, voluntarily assumes a protective duty toward a certain member of the public and undertakes action on behalf of that member, thereby inducing reliance, it is held to the same standard of care

as a private person or organization.” Williams

v. State of California (1983) 34 Cal.3d 18, 24. The necessary elements for a special relationship are: (1) that the officer took an affirmative action which contributed to, increased, or changed a risk which would have otherwise existed; or (2) that the officer voluntarily assumed responsibility to protect the individual; or (3) that the individual detrimentally relied on the conduct of the officer in statements made by him which induced a false sense of security, thereby worsening the individual's position. *Id.* at pp. 27–28.

Plaintiffs argue

the special relationship in this case is analogous to the special relationship in *Arista v. County of Riverside* (2018) 29 Cal.App.5th 1051 (*Arista*). In *Arista*, a plaintiff's husband was late returning from a bike ride in the mountains where he had suffered injuries after a fall. After the plaintiff called 911, police officers dispatched to her home, collected information, and told her they would handle the situation while she waited. The plaintiff relied on the officers' statements and waited. However, the officers did not go out to look for the husband until the next morning, despite predictions of freezing cold overnight.

The husband died of hypothermia where he might have otherwise been found and saved if the officers had searched earlier.

Arista, at pp. 1055-1056.

The *Arista*

Court held the requisite special relationship was established because the deputies, “through their actions, undertook the responsibility of rescuing the victim because the deputies were actively involved in all aspects of locating the victim, and by appointing an Incident Commander, the deputies signaled that they were taking control of the rescue. Therefore, the deputies had the duty to exercise due care in performing the rescue, which means (a) using reasonable care not to increase the risk of harm, and (b) following through in a reasonable manner after inducing reliance on the rescue.” *Arista*, *supra*, 29 Cal.App.5th at p. 1061. The *Arista* Court held the plaintiff had “sufficiently pled that the deputies undertook rescue efforts and induced reliance on those efforts.” *Id.* at p. 1062.

This case is

distinguishable from *Arista* in that Plaintiffs in this case have not alleged a deferred undertaking by police that contributed to Amelia's

death. Rather, Plaintiffs concede LAPD did conduct a search of the property. Unlike in *Arista* where the officers promised to undertake a search and failed to do so, LAPD's alleged failure to act in this case centers on the officers' decision not to open closed door while conducting a search. *Arista* does not stand for the position that police officers may incur liability when they take affirmative acts to rescue a person by conducting a search but that search is not thorough enough to locate the missing person. Nor does *Arista* stand for the position that a police department may be civilly liable for failing to search every room of a property when such failure was the result of their reasonable calculation that opening a closed door might violate the residents' Fourth Amendment right against warrantless searches.

Where there is no special relationship imposing a duty of care on a responding officer, the responding officer generally does not have a duty to protect a citizen against harms by third parties. See *Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 214; see also *Shelton*, supra, 138 Cal.App.3d at p. 613 (public policy warrants against imposing liability on allegedly negligent police investigation of missing person based on police department's representation that the "missing person report would be fully and completely investigated"). Sovereign immunity is the rule unless there is a statute authorizing the cause of action. See *Sonoma Ag Art v. Department of Food & Agriculture* (2004) 125 Cal.App.4th 122, 125. Because there was no statutory or "special relationship" duty owed by LAPD to Plaintiffs, sovereign immunity defeats all of Plaintiffs' alleged claims against City LA and/or Monzon.

The demurrer is sustained as to Ali's claims against City LA and Monzon.

d.

The demurrer will be sustained, without leave to amend. The motion to strike will be denied as moot.

Plaintiffs seek leave to further amend their pleading to state a cause of action against City LA and Monzon. Plaintiffs argue City LA and Monzon's argument "rests entirely on [their] disputed reading of the [Body Worn Videos], which the Court cannot weigh on demurrer." (Opposition, p. 15:13-15.)

The Court

disagrees with Plaintiffs that sustaining City LA and Monzon's demurrer requires evaluating the Body Worn Videos.

Rather, the substance of Plaintiffs' allegations as laid out in the TAC (and without any reliance on the body cam footage) reveals that Plaintiffs' claims arise from allegations that City LA and Monzon undertook certain discretionary acts in a manner that Plaintiffs found insufficient and as demonstrating indifference to Amelia's wellbeing. Because City LA and Monzon had no statutory obligation to conduct a specific type of search, Plaintiffs' claims as alleged in the TAC fail as a matter of law. This is true regardless of what is on the body cam videos.

As to whether to

grant Plaintiffs' additional leave to amend on other grounds, the TAC marks Plaintiffs' fourth attempt at pleading.

The Court already gave Plaintiffs leave to correct the defects identified herein when it ruled on City LA and Monzon's earlier motion for judgment on the pleadings. While the TAC includes additional specificity and supplemental allegations that were missing from the SAC, none of the additional allegations cures the defects identified in the Court's earlier ruling. Under these circumstances, further amendment would be futile. The demurrer will be sustained, without leave to amend. Obviously, the allegations tell the story of a tragic and horrific series of events. However, the law does not hold City LA and Monzon liable for those events.

Because the Court

has determined that each of Plaintiffs' claims against City LA and Monzon fails as a matter of law based on public entity immunity, the Court need not evaluate City LA and Monzon's other related arguments, e.g., the sufficiency of Plaintiffs' concealment allegations and the sufficiency of Ali's tort claim for damages.

Because the Court

has determined that Plaintiffs have no claim against City LA and Monzon as a matter of law, the motion to strike will be denied as moot.

V.

CONCLUSION

Defendants City of Los Angeles and

Jose Monzon's demurrer to Plaintiffs' Third Amended Complaint is SUSTAINED, without
leave to amend.

Defendants City of Los Angeles and Jose

Monzon are

ORDERED to give notice.

DATED: June 30, 2026

Lee Arian

Judge of the Superior Court